

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: jurisdiction-invoking district notice.

UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Officer Rusk's Notice of Interlocutory Appeal

Filed January 16, 2026.

Notice is given that defendant Officer Nolan Rusk appeals to the United States Court of Appeals for the Fourth Circuit from the January 9, 2026 memorandum opinion and order denying his motion for summary judgment on qualified-immunity grounds, to the extent that order is immediately appealable.

Rusk invokes the collateral-order doctrine applicable to a denial of qualified immunity insofar as the appeal presents an issue of law. The district court has not entered a final judgment on Ellison's remaining claim, and this notice does not represent otherwise. The appeal is limited by the jurisdiction conferred by statute and governing precedent.

The challenged order holds that, on stated plaintiff-favorable assumptions, one drive-stun cycle and a forcible takedown violated a clearly established Fourth Amendment right. Rusk contests that legal conclusion. He preserves all arguments within the lawful scope of interlocutory review and does not ask this notice itself to decide which historical account is true.

Notice — distinction preserved from the challenged order

The January 9 opinion contains an evidentiary-sufficiency determination and a separate legal qualified-immunity determination. It finds a jury dispute over whether Ellison struck Rusk and moved toward his duty belt or instead only recoiled and pulled from painful wrist control. It expressly does not find either version historically true.

The opinion's legal analysis assumes Ellison was unarmed and distressed; did not strike, grab, flee, reach toward equipment, or pose immediate danger; and received a five-second drive-stun cycle during a takedown. Rusk disputes those facts in the district record but accepts the need to address an assumed-facts legal question when appellate jurisdiction requires it.

This notice does not convert a challenge to evidence sufficiency into a question of law. Rusk's appellate filings will identify the assumptions relevant to each legal contention. Ellison may contest appellate jurisdiction over any argument that seeks to reweigh testimony, draw defense-favorable inferences from the body-camera obstruction, or resolve the strike-and-reach dispute. The court of appeals will determine its own jurisdiction.

Notice — transmission and service information

The district clerk is requested to transmit this notice, the challenged memorandum opinion and order, the civil docket, and the information required to open an appellate case. The parties anticipate designation of the motion papers, fact statements, joint body-camera chart, native-media references, relevant depositions and reports, and other items needed to understand both the assumed-facts holding and the unresolved record.

No district-court hearing produced a transcript of the summary-judgment ruling. Rusk will file the appropriate transcript order form or no-transcript statement and a record designation under the applicable procedure. The original native media remain in the custody framework established by the district court and need not be duplicated inside this notice.

Counsel certifies electronic service on all counsel of record on January 16, 2026. The filing is seven days after entry of the challenged order and identifies that order without purporting to appeal an unentered final judgment. The Fourth Circuit docket number, once assigned, is expected to be SYN-CA4-26-CV-4104 for this fictional training case.

Respectfully submitted,

Fictional Counsel for Officer Nolan Rusk